

12.	2025-1513210 Zapata vs. General Motors LLC	Case Management Conference Plaintiff Mercedes Zapata's motion for leave to file a First Amended Complaint is granted. The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. (Code Civ. Proc. § 473(a)(1).) The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code. (Code Civ. Proc. § 473(a)(1).) Additionally, any judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order. (Code Civ. Proc. § 576.) Plaintiff seeks leave to file a First Amended Complaint to add a cause of action for violation of the Song-Beverly Act. Plaintiff states that the need to amend arose because discovery received on 12/15/25 revealed that Plaintiff's vehicle qualifies as a new motor vehicle under the Song-Beverly Act. (Valitskaya Decl. ¶ 3). Plaintiff attaches the proposed First Amended Complainant (Ex. 1) to the motion. Plaintiff's motion complies with CRC, Rule 3.1324(b). The Court does not find Defendant's arguments in opposition persuasive. No cognizable prejudice has been shown. As a result, the motion is granted. Plaintiff shall file and serve her First Amended Complaint no later than Friday, June 12, 2026, pursuant to the Code of Civil Procedure. Plaintiff shall give notice.
13.	2025-1482423 Ferrino vs. City of Anaheim	Case Management Conference Defendant City of Anaheim's Demurrer to Plaintiffs' First Amended Complaint is sustained in part and overruled in part. The demurrer to the first cause of action for wrongful death is sustained. The

demurrer to the second cause of action for dangerous condition of public property is overruled.

Defendant's request for judicial notice is granted. (Evid. Code, § 452, subd. (b), (c), and (h); *People v. Bratton* (2023) 95 Cal.App.5th 1100, 1105.)

1st COA for Wrongful Death

The Court sustains the demurrer to the wrongful death claim, because it is completely redundant of the claim for dangerous condition of public property. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290 [cause of action that is completely duplicative of another cause of action and adds nothing to complaint by way of fact or theory of recovery may be subject to demurrer].) In their opposition, Plaintiffs argue that the wrongful death claim "properly alleges Defendant's liability for wrongful death under section 835," as such, "it is immaterial if the FAC supposedly improperly alleges liability under section 815.2." (Opp'n at p. 14.) This argument is not persuasive because, if Plaintiffs are relying on section 835 for liability, then there really is no apparent reason for the court to permit a redundant claim. Further, Plaintiffs have not refuted Defendant's authority that it cannot be held vicariously liable for property defects. (See Dem. at p. 14, citing *Van Kempen v. Hayward Area Park etc. Dist.* (1972) 23 Cal.App.3d 822, 825 ["public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2"].)

Thus, unless Plaintiffs can show how this defect can be cured, the Court is inclined to sustain the demurrer to the wrongful death claim without leave to amend.

2nd COA for Dangerous Condition of Public Property

Under the Government Claims Act, "there is no common law tort liability for public entities in California; instead, such liability must be based on statute." (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 897, citing Gov. Code, § 815, subd. (a).) Here, Plaintiffs allege Defendant is liable for having created "a dangerous condition under Government Code section 835." (FAC at ¶ 21.)

Government Code section 835 provides, in relevant part, that: "Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred, and ... [the] public entity had actual or constructive notice of the

dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.” (Gov. Code, § 835.)

Defendant contends it is immune under Government Code section 831.4, which provides:

A public entity, public employee, or a grantor of a public easement to a public entity for any of the following purposes, is not liable for an injury caused by a condition of:

(a) Any unpaved road which provides access to fishing, hunting, camping, hiking, riding, including animal and all types of vehicular riding, water sports, recreational or scenic areas and which is not a (1) city street or highway or (2) county, state or federal highway or (3) public street or highway of a joint highway district, boulevard district, bridge and highway district or similar district formed for the improvement or building of public streets or highways.

(b) Any trail used for the above purposes.

(c) Any paved trail, walkway, path, or sidewalk on an easement of way which has been granted to a public entity, which easement provides access to any unimproved property, so long as such public entity shall reasonably attempt to provide adequate warnings of the existence of any condition of the paved trail, walkway, path, or sidewalk which constitutes a hazard to health or safety. Warnings required by this subdivision shall only be required where pathways are paved, and such requirement shall not be construed to be a standard of care for any unpaved pathways or roads. (Gov. Code, § 831.4.)

Defendant argues that it cannot be reasonably disputed that the decedent was on a “recreational trail” (within the meaning of section 831.4) when Cross-Defendant lost control and crashed into her while she was jogging on the trail. And, although Plaintiffs point to the design of the traffic intersection as the “dangerous condition,” that trail immunity applies because the trail’s “location is as much a characteristic of a trail as design.” (Dem. at p. 4.) Further, when such immunity applies, it is absolute. (Dem. at pp. 5-6, citing *Nealy v. County of Orange* (2020) 54 Cal.App.5th 594; *Leyva v. Crockett & Company, Inc.* (2017) 7 Cal.App.5th 1105, 1109.)

Plaintiffs, on the other hand, contend that trail immunity does not apply, because “a plain reading of Government Code section 831.4 makes clear that Plaintiffs’ FAC does not trigger trail immunity.” (Opp’n at p. 9.) Specifically, Plaintiffs assert that, “There are no allegations in the FAC which suggest that any condition of the Trail proximately caused, played a substantial factor in, or contributed to Rangel’s actions, Decedent’s injuries, or Decedent’s death,” and that,

		to find otherwise, the court would purportedly have to “engage in a fact-intensive inquiry balancing the conditions at the Subject Intersection against the location, integrity, or conditions of the Trail...” (Opp’n at p. 10.) Courts have taken an expansive reading of “caused by a condition of [a trail].” Multiple courts have found that the <i>location</i> of the trail is one of those “conditions.” (See, e.g., <i>Nealy v. County of Orange</i> (2020) 54 Cal.App.5th 594, 603, citing <i>Leyva v. Crockett & Co., Inc.</i> (2017) 7 Cal.App.5th 1105, 1109, italics added “[L]ocation, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons.” [Citation.] This immunity is absolute.”); <i>Amberger-Warren v. City of Piedmont</i> (2006) 143 Cal.App.4th 1074, 1085 [“Plaintiff is in effect arguing that the trail is situated in a dangerous location ... but location, no less than design, is an integral feature of a trail, and both must be immunized for the same reasons”].) Nevertheless, the issue is not as straightforward as the quoted language above suggests. <i>Levy</i>, <i>Amberger-Warren</i>, and <i>Reed</i> are representative of cases where courts found trail immunity exists, because the “injury-producing location” was <u>a condition of the trail</u>. On the other hand, <i>Toeppe</i> and <i>Garcia</i> are representative of cases where courts found trail immunity did not exist, because the dangerous condition existed <u>without regard to the location of an adjacent trail</u>. Here, it would be premature for the Court to determine whether the allegedly “dangerous condition” of the subject intersection would exist without regard to the location of the trail. The facts alleged in the Complaint, when taken as true, do not show that the trail immunity applies <i>as a matter of law</i>. Accordingly, the demurrer to the claim shall be overruled. Unless Plaintiffs meet their burden of showing that leave should be given to amend their wrongful death claim, the Court intends to order Defendant to answer the remaining claim for dangerous condition of public property.
15.	2025-1470204 Allied Public Adjusters, Inc. vs. G.D. Baca, Inc.	Case Management Conference The general demurrer of defendants Gary Baca and G.D. Baca, Inc., to all three causes of action in the second amended complaint of plaintiff Allied Public Adjusters, Inc., is SUSTAINED with 20 days’ leave to amend. Although their notice of motion/demurrer does not comply with subdivision (a) of CRC 3.1320, defendants are demurring generally